

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Adrian Legaspi	Team: Team # 4	CCRB Case #: 201213842	☒ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 08/21/2012 10:00 PM	Location of Incident: § 87(2)(b) and the 77th Precinct Stationhouse.		18 Mo. SOL 2/21/2014 Precinct: 77
Date/Time CV Reported Wed, 10/24/2012 2:51 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 10/24/2012 2:51 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Juan Moreno	03602	935351	PBBN

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Yoan Delacruz	21906	950296	PBBN
2. POM Brian Granata	04736	950525	013 PCT
3. POM Shawn Guertin	27975	950542	077 PCT
4. SGT David Jones	02597	892418	077 PCT
5. PA Sharron Hargrove		337685	108 PCT
6. SGT Sandrina Osborne	00583	916371	077 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Juan Moreno	Discourtesy: At § 87(2)(b) and the 77th Precinct stationhouse, Sgt. Juan Moreno spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . SGT Juan Moreno	Force: At the 77th Precinct stationhouse, Sgt. Juan Moreno used physical force against § 87(2)(b)	B . Exonerated

Case Summary

On October 24, 2012, § 87(2)(b) called the CCRB to file a complaint against NYPD officers. On August 21, 2012, § 87(2)(b) s son, § 87(2)(b) was arrested in front of § 87(2)(b) in Brooklyn, by PO Brian Granata. PO Yoan Delacruz and Sgt. Juan Moreno were also present. § 87(2)(b) was transported to the 77th Precinct Stationhouse with § 87(2)(b) arriving soon after. The following allegations resulted:

Allegation A – Discourtesy: At § 87(2)(b) and at the 77th Precinct Stationhouse, Sgt. Juan Moreno spoke discourteously to § 87(2)(b)

§ 87(2)(g) it is recommended that **Allegation A** be closed as **Unsubstantiated**.

Allegation B– Abuse of Authority: At the 77th Precinct Stationhouse, Sgt. Juan Moreno used physical force against § 87(2)(b)

§ 87(2)(g) it is recommended that **Allegation B** is closed as **Exonerated**.

Results of Investigation

Civilian Statements

Complainant: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) *Hispanic female who stands § 87(2)(b), has brown hair and brown eyes.*

Written Statement (encl.7-9)

§ 87(2)(b) wrote a summary of what occurred on August 22, 2012. § 87(2)(b) provided this statement to the CCRB on January 12, 2013. It reads: “On August 21st at about 10:00 p.m. I was parking my car in our garage at § 87(2)(b). When I saw four officers approach my son, § 87(2)(b) who was sitting on the porch of his friend, at § 87(2)(b), across the street, § 87(2)(b) ...I saw Sgt. _____ and Officer De La Cruz enter the porch and forcefully pull my son and handcuff him...I ran across the street to ask the sergeant why was my son being arrested. They never answered my question. Nor did they tell my son why he was being arrested. The only words the Sgt. said was mind my business and don’t come to the precinct...while they were driving to the precinct I was on my way... We both reached the precinct at the same time. When Sgt. _____ saw me at the desk asking to speak to someone... four other officers and another Sgt. _____ had to pull him off of me....he tried to push me down the stairs and at least two times smack my face on the glass before the officers could get him off of me...He then handcuffed me and arrested me...”

CCRB Statement

§ 87(2)(b) was interviewed at the CCRB on January 11, 2013 (encl.11-17). On August 21, 2012, at approximately 10:00 p.m., in the vicinity of § 87(2)(b) in Brooklyn, § 87(2)(b) was driving home from a friend’s birthday party. § 87(2)(b) had not consumed alcohol or narcotics that day. Her brother § 87(2)(b) was seated in the passenger’s seat. § 87(2)(b)

§ 87(2)(b) It was a clear night. As § 87(2)(b) pulled her vehicle into the covered parking garage of her home located at § 87(2)(b) § 87(2)(b) told her that approximately 6 officers were rushing the gate of a house located at § 87(2)(b) § 87(2)(b) s son, § 87(2)(b) and a group of four to five of his friends were sitting on the stoop of § 87(2)(b) § 87(2)(b) went inside of his house after § 87(2)(b) parked her vehicle. § 87(2)(b) exited her vehicle and saw PO1 on the steps of § 87(2)(b) instructing § 87(2)(b) to get up and put his hands behind his back. § 87(2)(b) believed PO1 to be a sergeant and described him as a uniformed olive-toned Hispanic male, standing 5'11" to 6'0" tall, with an athletic build, approximately 35 years old, with dark brown or black hair. § 87(2)(b) did not obtain his name or shield number. PO1 has been identified by the investigation as Sgt. Juan Moreno § 87(2)(b) is approximately ten to 15 feet away from § 87(2)(b) § 87(2)(b) ran across the street.

Of § 87(2)(b) s friends present, § 87(2)(b) recognized § 87(2)(b) last name unknown, § 87(2)(b) § 87(2)(b) last name unknown, § 87(2)(b) last name unknown, and § 87(2)(b) last name unknown. § 87(2)(b) could not recall their contact information. An officer whom § 87(2)(b) identified as PO Yoan Delacruz and several other officers were standing outside the gate. § 87(2)(b) described PO Delacruz as a light-skinned Hispanic male, standing approximately 5'6" tall, with a medium build, and approximately 28 years old. § 87(2)(b) read PO Delacruz's name off of his shield, and recognized him from prior interactions in the neighborhood. § 87(2)(b) s friends were standing around him at various locations on the stoop.

§ 87(2)(b) arrived at the gate of § 87(2)(b) and asked Sgt. Moreno approximately eight to nine times what was going on. No officers tried to stop § 87(2)(b) from going to the gate of § 87(2)(b) Sgt. Moreno ignored § 87(2)(b) the first four times and then said, "Get the fuck out of my face." § 87(2)(b) did not allege this comment in her written statement. While § 87(2)(b) was speaking to Sgt. Moreno, § 87(2)(b) s friends were yelling at the officers, "You can't do this, you have no right."

Sgt. Moreno placed § 87(2)(b) in handcuffs, and proceeded to take him to one of the marked police vehicles located at the corner of § 87(2)(b) and § 87(2)(b) § 87(2)(b) alleged in her written statement that § 87(2)(b) was "forcefully pulled" by Sgt. Moreno and PO Delacruz, however she did not state this in her in-person statement.

§ 87(2)(b) saw two marked police vehicles sedans at the corner of § 87(2)(b) she did not obtain the RMP numbers of either vehicle. § 87(2)(b) walked calmly with Sgt. Moreno to the corner. The other officers followed them. § 87(2)(b) did not resist and did not raise his voice. § 87(2)(b) was excited and kept asking Sgt. Moreno loudly what was going on. § 87(2)(b) was not screaming or cursing. § 87(2)(b) was not doing anything physically with her body except following Sgt. Moreno. § 87(2)(b) was standing approximately four to five feet away from Sgt. Moreno.

As § 87(2)(b) continued to ask Sgt. Moreno what was going on, he responded by saying "get the fuck out of my face" and "mind your fucking business." § 87(2)(b) did not allege that Sgt. Moreno said, "Get the fuck out of my face" in her written statement. Sgt. Moreno never explained why § 87(2)(b) was being arrested. PO Delacruz placed § 87(2)(b) into one of the patrol cars. § 87(2)(b) kept asking Sgt. Moreno why he was arresting § 87(2)(b) PO Delacruz turned around and said, § 87(2)(b) please move." § 87(2)(b) told PO Delacruz to "mind his own business." After Sgt. Moreno refused to provide further information to § 87(2)(b) she told him that she was going to the precinct. § 87(2)(b) made no mention of this exchange in her written statement.

§ 87(2)(b) ran to the 77th Precinct Stationhouse, which is only a few blocks away from the incident location. When § 87(2)(b) entered the stationhouse, she saw PO2 at the front desk, and PAA1 in the civilian complaint area. § 87(2)(b) described PO2 as a uniformed black female, between 5'2" to 5'5" tall, with short black hair, and approximately 38 to 39 years old. PO2 was identified by the investigation as Sgt. Sandrina Osborne. § 87(2)(b) did not obtain her name or

shield number. § 87(2)(b) described PAA1 as a black female, in civilian clothes, approximately 50 to 60 years old, with a heavyset build. PAA1 was identified by the CCRB as PAA Sharron § 87(2)(b). § 87(2)(b) kept asking to speak with a sergeant about what was going on, however Sgt. Osborne did not respond to § 87(2)(b). At no point did Sgt. Osborne speak with or even acknowledge § 87(2)(b). PAA Hargrove asked § 87(2)(b) what was wrong. § 87(2)(b) explained why she was at the stationhouse and why she was upset. After § 87(2)(b) spoke with PAA Hargrove for about two minutes, Sgt. Moreno, and the other officers from the scene of arrest arrived with § 87(2)(b). Sgt. Moreno saw § 87(2)(b) and said, “Didn’t I tell you not to come to the fucking precinct.” § 87(2)(b) made no mention of this comment in her written statement.

§ 87(2)(b) became agitated, raised her voice slightly, but did not curse or move her body forward. Out of frustration, § 87(2)(b) began gesticulating, but not in a way that put her hands close to Sgt. Moreno. Sgt. Moreno walked towards § 87(2)(b) and came within a foot of her face over the wooden divider which separates the civilian waiting area from the officer section of the stationhouse.

Sgt. Moreno said “Didn’t I tell you not to come to this fucking precinct.” § 87(2)(b) responded by reiterating that she wanted to know why her son was arrested. Sgt. Moreno said, “If you don’t leave, I am gonna fucking arrest you.” Sgt. Moreno said this approximately two times, and § 87(2)(b) did not leave. § 87(2)(b) did not mention this exchange in her written statement. § 87(2)(b) told Sgt. Moreno that he had no cause to arrest her. Sgt. Moreno leaned over the divider and with his right forearm pushed the top of § 87(2)(b)’s chest and left side of her neck. § 87(2)(b) did not attempt to physically resist. § 87(2)(b) moved back as a result of the force of his pushing.

As Sgt. Moreno was pushing § 87(2)(b) with his right forearm he grabbed § 87(2)(b)’s left arm turned her around and pushed her against a pane of glass covering the area behind where PAA Hargrove sat. The left side of § 87(2)(b)’s face made contact with the glass. § 87(2)(b) believed that Sgt. Moreno placed his left arm against the right side of the back of her neck and face. PAA Hargrove was on the other side of the pane of glass that § 87(2)(b) was pushed against. Sgt. Osborne witnessed what was happening. § 87(2)(b) had her phone in her left hand. As Sgt. Moreno pushed § 87(2)(b) against the glass she tried to push herself away from the glass.

Sgt. Moreno began shouting for handcuffs. PO Delacruz and PO3, who § 87(2)(b) could only describe as a uniformed white male, rushed over and pulled Sgt. Moreno off of § 87(2)(b) as Sgt. Moreno placed her in handcuffs. PO3 remains unidentified by the investigation. At some point, § 87(2)(b) did not remember when, PO Delacruz continued to banged her hand against the pane of glass to make her release her phone. As a result of this action, the glass on § 87(2)(b)’s phone was cracked and had to be repaired.

§ 87(2)(b) did not mention her phone being damaged in the written statement that she provided. § 87(2)(b) began to get agitated. § 87(2)(b) was shouting, “why are you touching my mom, get off of her.” After § 87(2)(b) was placed in handcuffs, she became agitated and began to call Sgt. Moreno, “faggot” and “bitch” and said that if he had listened to her in the first place she would not have been arrested. PO4 and PO5 threw § 87(2)(b) on the ground; PO4 put his knee into § 87(2)(b)’s back and attempted to calm him down. § 87(2)(b) could only describe PO4 and PO5 as uniformed males. § 87(2)(b) was arrested for § 87(2)(b).

§ 87(2)(b) § 87(2)(b) stated that she sought medical treatment at § 87(2)(b) however there was no record of her having received treatment at these hospitals in the dates § 87(2)(b) provided.

Witness: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) Hispanic male he § 87(2)(b) has brown hair and green eyes. § 87(2)(b)

CCRB Statement

On January 11, 2013, § 87(2)(b) was interviewed at the CCRB (encl.18-23). On August 21, 2012, at approximately 10:00 p.m., at § 87(2)(b) in Brooklyn, § 87(2)(b) was sitting on the front stoop with his friends, § 87(2)(b) and § 87(2)(b) last name unknown, § 87(2)(b)'s friend, resides at § 87(2)(b). § 87(2)(b) was not at his house during this incident. The sidewalk in front of the stoop of § 87(2)(b) is separated by a fence. Several of § 87(2)(b)'s friends were sharing a clear plastic cup of vodka, however § 87(2)(b) was not drinking. § 87(2)(b) had not consumed any alcohol or narcotics that day. None of § 87(2)(b)'s friends were intoxicated. PO1 and PO2 came towards the gate from the right side of § 87(2)(b). § 87(2)(b) described PO1 as a uniformed white male, standing 5'7" tall, with a thin build, short hair, and approximately 24 to 25 years old. PO1 was identified by the CCRB as PO Brian Granata. § 87(2)(b) described PO2 as a uniformed white male. § 87(2)(b) could not describe him further. PO2 remains unidentified by the CCRB. PO3 and PO4 came from the left side of § 87(2)(b). § 87(2)(b) described PO3 and PO4 as uniformed white males. § 87(2)(b) could not describe them further. PO3 and PO4 remain unidentified by the CCRB. § 87(2)(b)'s view of the sidewalk was obstructed by some bushes, so he was not completely sure where the officers came from.

PO Granata, PO2, PO3, and PO4 went to the gate in front of the stoop. One of these four officers, § 87(2)(b) was unsure which, asked § 87(2)(b) if he was drinking. § 87(2)(b) said no. PO Granata, PO2, Sgt. Moreno, and PO Delacruz went through the gate towards § 87(2)(b) and came within two feet of him. § 87(2)(b) identified Sgt. Moreno and PO Delacruz by name, and stated that he knew their names from prior interactions. § 87(2)(b) described Sgt. Moreno as a uniformed brown-skinned Hispanic male, standing 5'9" to 5'10" tall, with a muscular or athletic build, short black hair, and tribal tattoos on one of his arms. § 87(2)(b) described PO Delacruz as a uniformed light-skinned Hispanic male, approximately 23 years old, with an athletic build, standing approximately 5'7" tall, with black hair in a Mohawk style and long thin sideburns. § 87(2)(b) and his friends, have had numerous interactions with PO Delacruz. PO Granata asked § 87(2)(b) for ID, § 87(2)(b) reached into his back pocket to get his wallet where his ID was kept. After removing his ID, one of the officers in front of him, he was unsure which, knocked the ID out of his hand.

The same officer told § 87(2)(b) to put his hands behind his back and he complied. PO Granata and PO2 held § 87(2)(b)'s arms behind his back. § 87(2)(b) was unsure which officer placed him in handcuffs. The rest of the officers that were not surrounding § 87(2)(b) were standing at the bottom of the stoop. § 87(2)(b) was at the bottom of the steps and § 87(2)(b) was at the top of the stoop to the right of § 87(2)(b). § 87(2)(b) asked the officers for an explanation, and tried to explain that the plastic cup of vodka was his. § 87(2)(b) confirmed what § 87(2)(b) said, because at the time they believed the officers were approaching them for drinking in public. As § 87(2)(b) was being placed in handcuffs he remained calm. He did not shout or use profanity. He did not physically resist being placed in handcuffs.

As § 87(2)(b) was being taken down the stairs of the stoop, § 87(2)(b) saw what was going on and ran across the street from her house located at § 87(2)(b) towards § 87(2)(b). § 87(2)(b)'s friends followed him and the officers down the steps of the stoop towards the corner of § 87(2)(b) and § 87(2)(b). Three marked RMPs were parked at the corner. § 87(2)(b)

§ 87(2)(b) did not obtain the RMP numbers. Several seconds after § 87(2)(b) and the officers arrived at the corner, a marked van arrived at the scene. § 87(2)(b) asked § 87(2)(b)'s friends what was happening, and they explained that § 87(2)(b) was arrested for an unknown reason. § 87(2)(b) was placed in the back of the marked van with PO Delacruz. § 87(2)(b)'s friends surrounded the RMPs and asked the officers to release § 87(2)(b). § 87(2)(b) continued to ask the assembled officers what was going on. Eventually Sgt. Moreno said to § 87(2)(b) "Shut the fuck up and go home." § 87(2)(b) continued to ask what was happening. § 87(2)(b) said aloud, to no one in particular, "I am going to the fucking precinct." Sgt. Moreno said, "No you are not, go the fuck home, I am going to punch you in your fucking face." § 87(2)(b) told Sgt. Moreno not to punch § 87(2)(b) in the face. § 87(2)(b) told Sgt. Moreno to, "Get the fuck out of here." Sgt. Moreno then chest-bumped § 87(2)(b) and told her to go home. After Sgt. Moreno chest-bumped § 87(2)(b) he said, "I will lock you the fuck up." § 87(2)(b) was calm at first, but then began to raise her voice after Sgt. Moreno threatened her with arrest.

§ 87(2)(b) was brought to the 77th Precinct. As § 87(2)(b)'s pockets were being searched, § 87(2)(b) arrived in the precinct. § 87(2)(b) was behind the wooden divider that separates civilians from the officer's area of the stationhouse. § 87(2)(b) asked PAA1, sitting behind a Plexiglas partition, to speak with a sergeant. § 87(2)(b) described PAA1 as a black civilian female, with a heavy set build, short black hair, approximately 50 to 60 years old. PAA1 was identified by the investigation as PAA Hargrove.

Sgt. Moreno, PO Granata, and PO2, left § 87(2)(b)'s side, and came up to § 87(2)(b) as she was speaking with PAA Hargrove. Sgt. Moreno began to chest bump § 87(2)(b) in attempt to push her out of the door. He chest bumped her approximately three times. Sgt. Moreno told § 87(2)(b) to leave at least two times. § 87(2)(b) began to get upset as Sgt. Moreno was getting physical with § 87(2)(b). He did not raise his voice, but was getting upset internally. He did not express his anger physically.

Sgt. Moreno crossed the divide grabbed § 87(2)(b)'s left arm with his left arm, and turned her around. He then pushed her against the Plexiglas partition. Sgt. Moreno called § 87(2)(b) a "bitch" numerous times. § 87(2)(b) did not attempt to resist being turned around. § 87(2)(b) in a fit of rage, rushed to § 87(2)(b)'s aid. § 87(2)(b) was tackled by several officers, he did not recall which. The officers kept § 87(2)(b) down on the floor, one of the officers placed his knee in § 87(2)(b)'s back and tightened the cuffs. Because § 87(2)(b) was on the floor, he could not see what was happening with § 87(2)(b). By the time § 87(2)(b) was lifted off the ground by the same officers who tackled him, § 87(2)(b) was already placed in a holding cell. § 87(2)(b) was placed in a separate cell to await processing. § 87(2)(b) believed that his friends arrived at the stationhouse after § 87(2)(b) was placed in handcuffs, but he was not sure.

Numerous witnesses from the surrounding stores came out after § 87(2)(b) was placed in the back of the police van, however he did not obtain their contact information. § 87(2)(b) was charged with criminal mischief, in regards to an incident that occurred the day before. § 87(2)(b) believed that PO Delacruz has been harassing him and his friends. He did not sustain any injuries as a result of this interaction. § 87(2)(g)

Witness: PAA SHARRON HARGROVE

- PAA Sharron Hargrove is a § 87(2)(b) black female, § 87(2)(b) pounds, with black hair and brown eyes.
- On August 21, 2012, PAA Hargrove was assigned to the 124 Room taking civilian complaints and preparing forms. PAA Hargrove was working alone.

CCRB Statement

PAA Hargrove was interviewed at the CCRB on August 20, 2013 (encl. 24 - 25). On August 21, 2012, at approximately 10:00 p.m. PAA Hargrove was working in the 124 Room in the 77th Precinct Stationhouse. PAA Hargrove has no independent recollection of this incident. PAA Hargrove was explained details of the incident, however she could not recall any details about this incident.

PAA Hargrove was presented the arrest photos of § 87(2)(b) and § 87(2)(b) however she did not recognize them. PAA Hargrove did not see any officer use any physical force with any civilian in the 77th Precinct stationhouse on the day of the incident. PAA Hargrove did not see Sgt. Moreno use any force against § 87(2)(b) use any profanity, or threaten to arrest § 87(2)(b)

Attempts to Contact Civilians

On February 6, 2013, the undersigned investigator called § 87(2)(b) and scheduled an interview for February 8, 2013. On February 8, 2013, § 87(2)(b) failed to appear for his interview and did not call in advance to cancel or reschedule. Between February 12, 2013, and April 3, 2013, § 87(2)(b) was called four more times and messages were left when possible. As of November 22, 2013, § 87(2)(b) has not contacted the CCRB.

Between February 6, 2013, and March 11, 2013, § 87(2)(b) was called a total of three times. On March 11, 2013, § 87(2)(b) scheduled an interview for March 13, 2013. On March 13, 2013, § 87(2)(b) did not appear for his interview and did not call to cancel or reschedule. On April 3, 2013 § 87(2)(b) was called and a voicemail message was left requesting that he call the CCRB to reschedule his interview. On February 19 and 25, two please call letters were sent to § 87(2)(b) however both were returned with the notation not deliverable. As of November 22, 2013, § 87(2)(b) has not contacted the CCRB.

Between February 6, 2013, and April 3, 2013, § 87(2)(b) was called a total of five times, and a message was left when possible. As of November 22, 2013, § 87(2)(b) has not contacted the CCRB.

Between February 6, 2013, and February 19, 2013, § 87(2)(b) was called two times. § 87(2)(b) scheduled an interview for February 22, 2013. § 87(2)(b) did not appear for his interview and did not call in advance to cancel or reschedule. On February 25, 2013, a missed appointment letter was sent to § 87(2)(b). On March 11, 2013, § 87(2)(b) was called and scheduled an interview for March 15, 2013. On March 15, 2013, § 87(2)(b) did not appear for his interview and did not call in advance to cancel or reschedule.

NYPD Statements:

Subject Officer: SGT. JUAN MORENO

- *Sgt. Juan Moreno is a § 87(2)(b) old Hispanic male, § 87(2)(b), with black hair and brown eyes.*
- *On August 21, 2012, Sgt. Moreno was working with PO Delacruz. Sgt. Moreno was in uniform and was working from 7:13 p.m., until 4:12 a.m., on August 22, 2013. Sgt. Moreno was the impact sergeant and they were assigned to RMP# 5378.*

Memo Book (encl.40-43)

“9:37 p.m. man stop at front of § 87(2)(b) 9:37 p.m., one arrest for § 87(2)(b) early 61- taking for a departure vehicle 8556- 61 #§ 87(2)(b) – Def. § 87(2)(b) DOB § 87(2)(b) 9:47

p.m., one female arrested for § 87(2)(b) § 87(2)(b), § 87(2)(b) DOE § 87(2)(b), ID# § 87(2)(b) 10:00 p.m., resuming patrol.”

CCRB Statement

Sgt. Moreno was interviewed at the CCRB on June 18, 2013 (encl. 44-46). On August 21, 2012, at approximately 9:40 p.m., Sgt. Moreno was patrolling with PO Delacruz in the vicinity of § 87(2)(b) in Brooklyn. PO Delacruz was driving, and Sgt. Moreno was in the passenger’s seat. Sgt. Moreno did not believe that there were other officers in the van.

While on patrol in the vicinity, Sgt. Moreno observed § 87(2)(b) sitting in front of § 87(2)(b) § 87(2)(b) was by himself at the time. On August 20, 2012 § 87(2)(b) broke the window of a police vehicle while his friend was being arrested. Immediately after § 87(2)(b) broke the window, Sgt. Moreno tried to apprehend § 87(2)(b) but he got away. A UF-61 was opened in regards. On August 21, 2012, as Sgt. Moreno observed § 87(2)(b) he decided to place him under arrest in regards to the open UF 61. PO Delacruz parked the RMP. Sgt. Moreno exited the vehicle and approached § 87(2)(b) Sgt. Moreno explained to § 87(2)(b) that he was going to be placed under arrest in regards to the crime he committed the previous day.

Initially in his interview, Sgt. Moreno said that § 87(2)(b) complied with being placed under arrest. However, later he stated that § 87(2)(b) resisted by moving back and forth while being placed in handcuffs. § 87(2)(b) walked to the RMP of his own accord. Sgt. Moreno eventually called for backup. Sgt. Moreno believed that PO Brian Granata was present at the scene of § 87(2)(b) s arrest. Sgt. Moreno was presented a copy of the roll call; however he could not identify any other officers who responded.

While § 87(2)(b) was being placed in the RMP, his mother, § 87(2)(b) came towards the RMP. § 87(2)(b) asked Sgt. Moreno and PO Delacruz what they were doing. Sgt. Moreno explained to § 87(2)(b) why they were placing § 87(2)(b) under arrest. § 87(2)(b) became agitated. She began raising her voice, and insisted that the officers could not place § 87(2)(b) under arrest. PO Delacruz said something to § 87(2)(b) but Sgt. Moreno did not hear what he said. § 87(2)(b) continued to curse and argue the validity of her son’s arrest. In response to § 87(2)(b) Sgt. Moreno instructed § 87(2)(b) to leave the area approximately four times. Sgt. Moreno did not say, “Shut the fuck up and go home,” “get the fuck out of my face,” or “mind your fucking business.” The only specific statement Sgt. Moreno recalled was § 87(2)(b) saying, “Fuck you, why are you arresting my son, you do this every day.” § 87(2)(b) jumped in front of the van which was going to transport § 87(2)(b) blocking it from moving further. Sgt. Moreno and PO Delacruz told § 87(2)(b) to leave several times. Neither Sgt. Moreno nor PO Delacruz used any profanity while speaking with § 87(2)(b)

Sgt. Moreno instructed PO Delacruz to back up the van and go around § 87(2)(b) After several minutes, they arrived at the 77th Precinct stationhouse. PO Delacruz parked the vehicle, and Sgt. Moreno escorted § 87(2)(b) into the precinct stationhouse to assist in § 87(2)(b) s arrest processing. PO Delacruz was standing near PO Delacruz as he processed § 87(2)(b) s arrest. § 87(2)(b) came into the precinct approximately 10 minutes after the officers arrived. Upon entering the stationhouse, § 87(2)(b) said, “Fuck the police, you guys can’t arrest my son.” Sgt. Moreno explained to § 87(2)(b) that he personally saw § 87(2)(b) commit the crime for which he was arrested. § 87(2)(b) cursed and called Sgt. Moreno an asshole.

Sgt. Davis Jones, who was also inside of the precinct stationhouse, came towards § 87(2)(b) and reiterated what Sgt. Moreno said to § 87(2)(b) Sgt. Jones also instructed § 87(2)(b) to leave the stationhouse. Sgt. Moreno could not recall specifically if other officers were present in the precinct stationhouse. Sgt. Moreno was standing behind the front desk. Sgt. Moreno could not

recall which, if any, PAAs were working on that day. Sgt. Moreno noted that the PAAs working that day would be listed on the roll call.

§ 87(2)(b) continued to curse. § 87(2)(b) began to slam the wooden gate that is located inside of the stationhouse, and separates the officer's area from the civilian's waiting area. § 87(2)(b) had a purse in her hand. Sgt. Moreno believed that PO Delacruz told § 87(2)(b) to calm down. Sgt. Moreno left the desk area, and stood approximately one foot from § 87(2)(b). At this point, Sgt. Moreno and § 87(2)(b) were still separated by the wooden gate.

Sgt. Moreno informed § 87(2)(b) that she could be arrested if she did not leave the precinct. § 87(2)(b) said, "You guys do whatever you need to do." At this point, Sgt. Moreno determined that § 87(2)(b) was under arrest as she failed to vacate the premises. Sgt. Moreno told § 87(2)(b) to put her hands behind her back. In response, § 87(2)(b) said, "These fucking police always coming to the block." § 87(2)(b) did not place her hands behind her back, and continued to slam the gate. Sgt. Moreno told § 87(2)(b) to put her hands behind her back again. § 87(2)(b) did not comply. The only statements Sgt. Moreno made to § 87(2)(b) were instructions for her to leave the precinct stationhouse. Sgt. Moreno never said "Didn't I tell you not to come to the fucking precinct," or "If you don't leave I am going to fucking arrest you." Sgt. Moreno did not threaten to punch § 87(2)(b) in her "fucking face." Sgt. Moreno did not threaten § 87(2)(b) with any physical force, nor did he hear any officer do so. Sgt. Moreno did not make any physical contact with § 87(2)(b) before placing her under arrest. Sgt. Moreno did not chest bump § 87(2)(b). Even though Sgt. Moreno informed § 87(2)(b) that she could be arrested if she did not leave the precinct stationhouse, he did not say, "I will lock you the fuck up."

Sgt. Moreno opened the gate, and went to grab § 87(2)(b) to place her in handcuffs. Sgt. Moreno and PO Delacruz each grabbed one of § 87(2)(b)'s arms and placed them behind her back so as to place her in handcuffs. Sgt. David Jones, ICO of the 77th Precinct, did not assist in § 87(2)(b)'s arrest. § 87(2)(b) resisted having her hands placed behind her back by tensing her arms. In the process of placing § 87(2)(b) in handcuffs, she began to move towards the ground. § 87(2)(b) knelt on the ground, but her chest did not make contact with the ground. § 87(2)(b) was arrested near a glass window that separates the PAA from the civilian waiting area. Sgt. Moreno did not recall if there was a PAA sitting behind the window; however, he stated there is usually a PAA present behind the glass window. Sgt. Moreno did not bang § 87(2)(b)'s hand against a glass window. § 87(2)(b) did not make any physical contact with the glass window. § 87(2)(b) tried to intervene with § 87(2)(b)'s arrest by moving towards her. However, as Sgt. Moreno was focused on § 87(2)(b) he could not describe exactly what § 87(2)(b) was doing. Sgt. Moreno believed that there were three or four civilians who had accompanied § 87(2)(b) to the stationhouse, however he did not know who they were. § 87(2)(b) did not complain of being injured and did not request medical attention, after she was placed in handcuffs. § 87(2)(b)'s arrest was processed by PO Delacruz, and in the process of searching her a gravity knife was recovered.

Witness Officer: PO YOAN DELACRUZ

- PO Yoan Delacruz is a § 87(2)(b) old Hispanic male, § 87(2)(b), with black hair and brown eyes.
- On August 21, 2012, PO Delacruz was working from 7:30 p.m., until 4:05 a.m. on August 22, 2012. PO Delacruz was working in uniform and was assigned to solo foot post 33 in the 77th Precinct.

Arrest Report #§ 87(2)(b) (encl.33-34)

§ 87(2)(b) was arrested by PO Yoan Delacruz. The narrative notes, "§ 87(2)(a) 160.50

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) The arrest report notes that force was not used. § 87(2)(b) s top charge was § 87(2)(a) 160.50

Memo Book (encl.30-32)

“9:43 p.m. Male § 87(2)(b) who was wanted criminal mischief was observed in front of § 87(2)(b) 1 under by PO Granata. 9:43 p.m., § 87(2)(b) mother came into the precinct causing public alarm, using obscene language towards officer. She was asked to calm down and leave which irritated her more and she continued. 9:48 p.m., female § 87(2)(b) § 87(2)(b) § 87(2)(b) Brooklyn, N.Y. § 87(2)(b) under disorderly conduct S.I.L.A she was found to be in possession of a butterfly, gravity knife, drug paraphernalia, quantity of marijuana. 12:00 a.m., defendant fingerprinted, OLBS done now vouchering arrest evidence. 12:58 a.m., § 87(2)(b) giving her purse containing cell phone forms of ID, miscellaneous papers, cell phone has a cracked screen o § 87(2)(b) DOB § 87(2)(b) DL# § 87(2)(b)

CCRB Statement

PO Delacruz was interviewed at the CCRB on May 15, 2013 (encl.35-37). On August 21, 2012, at approximately 9:40 p.m., PO Yoan Delacruz was on solo foot post in the vicinity of § 87(2)(b) in Brooklyn. PO Delacruz received a call for back and responded to § 87(2)(b) At the location, PO Delacruz observed PO Brain Granata and Sgt. Juan Moreno placing § 87(2)(b) under arrest in regards to a crime he had committed the previous day. PO Delacruz recalled that there were other civilians near § 87(2)(b) however PO Delacruz could not recall what interaction, if any, he had with these civilians. § 87(2)(b) who resides at § 87(2)(b) observed her son being placed under arrest and approached § 87(2)(b) and the officers.

Upon initially approaching the officers and her son, § 87(2)(b) was being loud and was clearly upset. PO Delacruz told § 87(2)(b) to go to the 77th Precinct stationhouse if she wished to discuss her son’s arrest. PO Delacruz did not hear Sgt. Moreno have any conversation with § 87(2)(b) PO Delacruz did not hear Sgt. Moreno use any profanity with § 87(2)(b) PO Delacruz did not see if Sgt. Moreno made any physical contact with § 87(2)(b) as he was focused on making sure that § 87(2)(b) was taken to the RMP without incident. § 87(2)(b) did not hear any officer use any profanity with § 87(2)(b) at any point during her son’s arrest. PO Delacruz did not recall exactly what § 87(2)(b) was doing while her son was being arrested, however, he told her numerous times that if she wished to discuss her son’s arrest she should go to the 77th Precinct stationhouse.

PO Delacruz walked to the 77th Precinct stationhouse, while Sgt. Moreno and PO Granata transported § 87(2)(b) to the precinct in their RMP. PO Delacruz saw § 87(2)(b) go back to her house. When PO Delacruz arrived at the precinct he saw § 87(2)(b) was standing before the desk, PO Delacruz went up to the desk. PO Delacruz’s back was facing the entrance of the precinct. PO Delacruz did not see § 87(2)(b) enter the 77th Stationhouse.

PO Delacruz heard § 87(2)(b) enter the 77th Precinct stationhouse because she was screaming and being loud. PO Delacruz heard officers telling § 87(2)(b) to be quiet. PO Delacruz did not turn around as he was busy dealing with § 87(2)(b) s arrest processing. PO Delacruz believed that he heard Sgt. Moreno tell § 87(2)(b) to be quiet. PO Granata was standing at the front desk as well. PO Delacruz did not recall any specific obscenities § 87(2)(b) was using.

PO Delacruz did not hear any officer say, “Didn’t I tell you not to come to the fucking precinct.” PO Delacruz did not hear any officer say, “If you don’t leave, I am gonna fucking

arrest you.” An officer did say to § 87(2)(b) that she would be placed under arrest if she continued to act the way she was acting, however, PO Delacruz did not see which officer said this statement, and he did not recognize the voice. PO Delacruz did not hear an officer say, “Go the fuck home, I am going to punch you in your fucking face.” PO Delacruz did not hear any officer make any statements about using force if § 87(2)(b) did not comply with the officers’ statements and leave the stationhouse.

Suddenly, PO Delacruz and PO Shawn Guertin, who was standing near the desk, saw § 87(2)(b) rush towards where his mother at the entrance of the stationhouse. PO Delacruz and PO Guertin took § 87(2)(b) down to the ground and held him down in order to prevent him from running towards his mother. PO Delacruz was focused on § 87(2)(b) so he did not know what was happening with § 87(2)(b). PO Delacruz did not know who placed § 87(2)(b) in handcuffs. PO Delacruz did not hear § 87(2)(b) complain of being injured or complain that her property was damaged. Sgt. Moreno informed PO Delacruz to process § 87(2)(b)’s arrest even though PO Delacruz was not involved in § 87(2)(b)’s arrest.

Witness Officer: PO BRIAN GRANATA

- PO Granata is a § 87(2)(b) old white male, § 87(2)(b), with brown hair and hazel eyes.
- On August 21, 2012, he began work at 7:30 p.m., and worked until 4:05 a.m., on August 22, 2012. PO Granata was the Sgt. operator. PO Granata was in uniform and working out of marked vehicle number 5378.

Arrest Report § 87(2)(b) (encl.50-51)

§ 87(2)(b) was arrested by PO Brian Granata. The narrative reads “§ 87(2)(a) 160.50 § 87(2)(b) Force was not used.

Memo Book (encl.47-49)

9:35 p.m., one male stopped at § 87(2)(b) § 87(2)(b) § 87(2)(b) date of birth § 87(2)(b). 9:37 p.m., Sgt. Moreno verified arrest. 9:20 p.m., faxed paperwork to ADA. 9:51 p.m., Authorized § 87(2)(b) to pick up two items from § 87(2)(b) one white i-phone and one rosary beads, his address § 87(2)(b) driver’s license #§ 87(2)(b)

CCRB Statement

PO Granata was interviewed at the CCRB on February 26, 2013 (encl.52-53). On August 21, 2012, at approximately 9:30 pm PO Granata and Sgt. Moreno were on routine patrol in the vicinity § 87(2)(b) in Brooklyn. The day before § 87(2)(b) broke a window of a police vehicle and a complaint report was opened against him. § 87(2)(b) resides in the vicinity of § 87(2)(b). PO Granata and Sgt. Moreno saw § 87(2)(b) sitting on the porch of § 87(2)(b) with two or three friends. PO Granata approached § 87(2)(b) and told him that he would be placed under arrest in regards to the crime he had committed.

§ 87(2)(b) turned around and complied with being placed in handcuffs. PO Granata did not call for backup while arresting § 87(2)(b). PO Granata did not recall if there was any conversation between § 87(2)(b) and Sgt. Moreno. PO Granata did not recall what § 87(2)(b)’s friends were doing. PO Granata did not recall if § 87(2)(b) was saying anything while he was being placed in handcuffs.

PO Granata and Sgt. Moreno escorted § 87(2)(b) to the RMP, when a woman, known to the CCRB as § 87(2)(b) approached the RMP. PO Granata did not pay attention to her. PO

Granata did not recall what she was doing or what she said, if anything, to the officers. PO Granata did not see if she had any conversation with Sgt. Moreno. PO Granata did not recall if Sgt. Moreno threatened to arrest § 87(2)(b). PO Granata did not see Sgt. Moreno push her or use profanity with § 87(2)(b).

PO Granata and Sgt. Moreno transported § 87(2)(b) back to the 77th Precinct stationhouse. PO Granata believed that PO Yoan Delacruz may have also been in the RMP. PO Delacruz and Sgt. Moreno exited the RMP with § 87(2)(b) and proceeded to the 77th Precinct stationhouse. PO Granata went to park the RMP.

When PO Granata entered the station house, § 87(2)(b) was already in handcuffs. PO Granata did not know who placed § 87(2)(b) in handcuffs. He did not see any injuries on her body. He did not hear any officer use any profanity. He did not hear her complain that her property had been damaged. He did not hear § 87(2)(b) ask for medical attention. Several other officers were present in the stationhouse, however PO Granata did not recall who they were, and did not know if they were present at the time § 87(2)(b) was placed under arrest.

PO Granata later heard from other officers that § 87(2)(b) jumped over the barricade in the stationhouse. After jumping over the barricade, she began to scream and yell. PO Delacruz did not discuss the incident to PO Granata. PO Granata did not recall which officers told him about § 87(2)(b)'s behavior in the stationhouse.

Witness Officer: SGT. SANDRINA OSBORNE

- Sgt. Sandrina Osborne is a § 87(2)(b) old black female § 87(2)(b), with black hair and brown eyes.
- On August 21, 2012, Sgt. Osborne was in uniform, working from 2:50 p.m., until 11:47 p.m. Sgt. Osborne was working as the desk officer at the time and was alone.

Memo Book (encl.26-27)

“Tuesday: 08/21/2012, Tour: 14:50 x 23:47. Assignment: Desk Officer.”

CCRB Statement

Sgt. Osborne was interviewed at the CCRB on October 16, 2013 (encl.28-29). On August 21, 2012, Sgt. Osborne was assigned to the desk. Sgt. Osborne did not have any independent recollection of this incident. Sgt. Osborne acknowledged that she prepared the command log entry in regards to § 87(2)(b)'s arrest, however this did not refresh her memory. Sgt. Osborne was presented the arrest photo of § 87(2)(b) and § 87(2)(b) however neither photo refreshed her memory. Sgt. Osborne was provided details about the incident however this did not refresh her memory. Sgt. Osborne stated that disorderly people often come into the 77th Precinct Stationhouse. Sgt. Osborne acknowledged that from her vantage point at the desk, she can see the civilian waiting area, which is approximately thirty feet away from the desk. Sgt. Osborne did not recall any officer making any physical contact with § 87(2)(b). Sgt. Osborne did not recall any officer use any profanity with § 87(2)(b) or threaten to arrest her. Sgt. Osborne did not recall any commotion in the 77th Precinct Stationhouse on the date of incident.

Witness Officer: SGT. DAVID JONES

- Sgt. David Jones is a § 87(2)(b) old black male, § 87(2)(b), with black hair and brown eyes.
- On August 21, 2012, Sgt. Jones was acting as the ICO and was working from 6:00 p.m., until 2:35 a.m., as the ICO. Sgt. Jones was working in Room 112 of the stationhouse. Sgt. Jones was in plainclothes.

Memo Book (encl. 56)

Sgt. Jones had no entries in his memo book.

CCRB Statement

Sgt. Jones was interviewed at the CCRB on September 19, 2013 (encl.57-58). On August 21, 2012, at approximately 10:00 p.m., Sgt. Jones was working on the first floor in an office on the far right of the 77th Precinct Stationhouse. From his office, Sgt. Jones is unable to see the civilian waiting area of the stationhouse. Sgt. Jones did not recall anything out of the ordinary happening in the stationhouse that night. Sgt. Jones did not recall a loud commotion in the civilian waiting area. Sgt. Jones did not recall interacting with Sgt. Moreno, PO Delacruz, or PO Granata.

Sgt. Jones was presented the ID photo and color arrest photo of § 87(2)(b) and § 87(2)(b) however he did not recognize either individual. Sgt. Jones was explained details of the incident, however, this did not refresh Sgt. Jones memory. Sgt. Jones stated that if there had been a commotion in the stationhouse and he was in the immediate vicinity he would have assisted. However, Sgt. Jones did not recall anything happening that day in the 77th Precinct stationhouse. Sgt. Jones did not see Sgt. Moreno push § 87(2)(b) against a glass window in the civilian waiting area. Sgt. Jones did not recall Sgt. Moreno using any profanity or shouting at § 87(2)(b). Sgt. Jones did not recall seeing any officers take § 87(2)(b) to the ground.

Witness Officer: PO SHAWN GUERTIN

- *Shawn Guertin is a § 87(2)(b) old white male, § 87(2)(b) with brown hair and brown eyes.*
- *On August 21, 2012, PO Guertin was on administrative duty in the back room of the 77th stationhouse. PO Guertin was working in uniform from 3:00 p.m., until 1:05 a.m., and was working alone.*

Memo Book (encl.59-60)

PO Guertin did not have any memo book entries in regards to this incident.

CCRB Statement

PO Guertin was interviewed at the CCRB on August 16, 2013 (encl.61-62). At approximately 10:00pm, PO Guertin had to make a copy, requiring PO Guertin to walk towards the front of the stationhouse. As PO Guertin left the back room, he heard a commotion. PO Guertin entered a hallway where he saw § 87(2)(b) handcuffed, standing against the wall. As PO Guertin entered the hallway, § 87(2)(b) ran towards PO Guertin. Seeing § 87(2)(b) running towards him, PO Guertin linked his right forearm through § 87(2)(b)'s handcuffed right arm and escorted § 87(2)(b) back to the wall. PO Delacruz arrived and linked his left forearm through § 87(2)(b)'s handcuffed left arm, assisting PO Guertin in escorting § 87(2)(b) back to the wall. § 87(2)(b) was compliant. § 87(2)(b) was not taken to the ground. Neither PO Guertin nor PO Delacruz used force against § 87(2)(b). As § 87(2)(b) was in the hallway, § 87(2)(b)'s mother, was in the civilian waiting area in the front of the stationhouse.

When PO Guertin first saw § 87(2)(b) § 87(2)(b) was yelling at § 87(2)(b) to calm down. PO Guertin did not hear what § 87(2)(b) was saying. PO Guertin did not see § 87(2)(b) cross the gate into the police area of the stationhouse. PO Guertin did not see which officers were dealing with § 87(2)(b). PO Guertin saw Sgt. Moreno at the desk beyond the hallway, but did not see Sgt. Moreno interact with § 87(2)(b). PO Guertin did not see PO Granata. PO Guertin did not know if a PAA was in the building. PO Guertin was not sure if there were other civilians in the front waiting room. After PO Guertin escorted § 87(2)(b) back to the hallway wall, PO Guertin

turned his back to § 87(2)(b) and returned to his administrative duties. PO Guertin was not sure if § 87(2)(b) was still shouting at that time.

PO Guertin did not hear any officers issue § 87(2)(b) any commands, nor did PO Guertin hear any officers shouting. PO Guertin did not hear § 87(2)(b) complain of being injured. PO Guertin did not hear anyone use profanity during the incident. PO Guertin did not hear any comment made about force used against § 87(2)(b) or about § 87(2)(b)'s property being damaged. PO Guertin did not hear any officers threaten to arrest § 87(2)(b). Based on what he saw and heard, PO Guertin did not know if § 87(2)(b) had been arrested. PO Guertin did not see § 87(2)(b) in the stationhouse after the incident and did not find out what happened to § 87(2)(b). According to PO Guertin, he was involved in the incident for around two minutes.

NYPD Documents

Command Log (encl.63-68)

The Command Log notes that § 87(2)(b) was brought before the desk at 9:40 p.m. and that his physical condition was apparently normal. § 87(2)(b) was brought before the desk at 9:45 p.m. and was arrested by PO Delacruz. Her condition is listed as apparently normal.

Roll Call (encl.69-81)

The Roll Call notes that Sgt. Osborne was working the desk from 2:50 p.m., until 11:47 p.m. PAA Hargrove was assigned to the Room 124 from 3:30 p.m. until 11:30 p.m.

Summons/Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]

Status of Civil Proceedings

- On November 22, 2013, a FOIL request was submitted in order to determine if a Notice of Claim was filed in regards to this incident; it will be included in the case file upon receipt.

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilians' CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 4-5)
- This is the first CCRB complaint filed by § 87(2)(b) (encl. 6)

Subject Officer(s) CCRB History

- Sgt. Juan Moreno has been a member of the service for nine years and there are no substantiated CCRB allegations against him. (encl. 3).

Conclusion

Identification of Subject Officer

Sgt. Moreno acknowledged interacting with § 87(2)(b) and § 87(2)(b). The descriptions of Sgt. Moreno and PO Delacruz provided by § 87(2)(b) and § 87(2)(b) match their physical characteristics.

Allegations Not Pled

§ 87(2)(b) alleged that in front of § 87(2)(b) Sgt. Moreno said to § 87(2)(b) “go the fuck home, I am going to punch you in your fucking face” as well as “I will lock you the fuck up.” However, § 87(2)(b) did not make any such allegation in her in-person statement or her written statement. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Investigative Findings and Recommendations

Allegation A – Discourtesy: At § 87(2)(b) and at the 77th Precinct Stationhouse, Sgt. Juan Moreno spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that in front of § 87(2)(b) Sgt. Moreno said “Get the fuck out of my face” twice, and “mind your fucking business” once, in response to § 87(2)(b)’s questions about § 87(2)(b)’s arrest. § 87(2)(b) later alleged that at the 77th Precinct Stationhouse, Sgt. Moreno said, “Didn’t I tell you not to come to the fucking precinct” twice.

§ 87(2)(b) alleged that in front of § 87(2)(b) Sgt. Moreno said, “Shut the fuck up and go home” and later at the 77th Precinct Stationhouse called § 87(2)(b) a “bitch” numerous times.

Sgt. Moreno denied using any profanity with § 87(2)(b) at any point during the incident. Sgt. Moreno maintained that § 87(2)(b) who was highly agitated throughout the incident, cursed at him both at § 87(2)(b) and at the 77th Precinct Stationhouse. PO Delacruz denied hearing Sgt. Moreno have any conversation with § 87(2)(b) at the scene of § 87(2)(b)’s arrest. PO Granata could not recall if § 87(2)(b) had any conversation with any of the officers at the scene of § 87(2)(b)’s arrest. Sgt. Moreno stated that the only conversation he had with § 87(2)(b) at the stationhouse was informing her that she could be arrested at the stationhouse if she continued to yell. As for PAA Hargrove, Sgt. Osborne, PO Guertin, and Sgt. Jones, they could not recall any specific details about the incident and could not attest to the conversation that occurred between Sgt. Moreno and § 87(2)(b) at the 77th Precinct Stationhouse.

In her written statement, § 87(2)(b) did not allege that Sgt. Moreno cursed at her at the scene of her son’s arrest or at the stationhouse. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(g)

therefore it is recommended that **Allegation A be closed as Unsubstantiated.**

Allegation B– Abuse of Authority: At the 77th Precinct Stationhouse, Sgt. Juan Moreno used physical force against § 87(2)(b)

§ 87(2)(b) alleged in her written statement that “four other officers and another Sgt. had to pull him [Sgt. Juan Moreno] off of me...he tried to push me down the stairs and at least two times smack my face on the glass before the officers could get him off of me...He then handcuffed me and arrested me...” § 87(2)(b) description of the way she was placed in handcuffs is consistent with her CCRB statement, however she did not mention Sgt. Moreno trying to push her down stairs or smacking her face against a glass window. In her official statement, § 87(2)(b) stated that her face was pushed against glass at some point during her arrest; however she did not allege that Sgt. Moreno deliberately pushed or smacked her face into the glass. In fact, § 87(2)(b) acknowledged that she was pushing away from the glass window as Sgt. Moreno was placing her in handcuffs. § 87(2)(b) did not mention stairs at any point during her official statement.

§ 87(2)(g) Sgt. Moreno stated that § 87(2)(b) was put to the ground and placed in handcuffs. Sgt. Moreno acknowledged that there was a glass window nearby, but denied that § 87(2)(b) made contact with it. § 87(2)(g)

Therefore, it is recommended that **Allegation B be closed as Exonerated.**

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date